

		that would require denial of the motion. (<i>Civ. Proc. Code</i> § 437c(c) and § 437c(p)(1). As Defendant failed to oppose the Motion, Defendant failed to meet the transferred burden under the code. The Motion is GRANTED. <i>Plaintiff to give notice.</i>
11.	Carlton v. Ford Motor Company 24-1445099	(Continued)
12.	Tykhonina v. In-N-Out Burgers, Inc. 25-1470899	The motion for summary judgment, or in the alternative, summary adjudication, filed by defendant In-N-Out Burgers (Defendant) directed to the complaint of plaintiff Daria Tykhonina (Plaintiff) is DENIED. On a motion for summary judgment, a defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action cannot be established, or that there is a complete defense thereto. (<i>Code Civ. Proc.</i>, § 437c(p)(2).) A defendant does not satisfy its burden of proof by producing evidence that does not exclude the possibility that plaintiffs may possess or may reasonably obtain evidence sufficient to establish their claim. (<i>Weber v. John Crane, Inc.</i> (2006) 143 Cal.App.4th 1433, 1441-1442.) "There is no obligation on the opposing party ... to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing <i>every element</i> ... necessary to sustain a judgment in his favor." (<i>Consumer Cause, Inc. v. SmileCare</i> (2001) 91 Cal.App.4th 454, 468 (emphasis in original; internal quotes omitted).) Defendant failed to address the full scope of duties and breaches alleged in the Complaint. (See <i>Nieto v. Blue Shield of Calif. Life & Health Ins. Co.</i> (2010) 181 Cal.App.4th 60, 74—"the pleadings determine the scope of relevant issues on a summary judgment motion".) Plaintiff alleges Defendant owed a duty to exercise reasonable care "with respect to the preparation, handling, and service of hot beverages so as to prevent them from spilling onto and injuring customers such as Plaintiff." (Compl., ¶ 7.) Plaintiff further alleges Defendant breached their duty of care by failing to properly secure the lid on the hot drink, "and otherwise negligently preparing, handling, and serving the drink[], so as to cause a hot drink to spill and cause catastrophic burns to Plaintiff, a customer." (Compl., ¶ 9.) Plaintiff also alleges the failure to properly secure the lid on the hot drink and the failure to appropriately hand the hot drink to Plaintiff created a foreseeable danger that the hot drink would spill upon handing it to a customer such as Plaintiff. (Compl., ¶ 10.) Defendant's motion focuses primarily on its alleged liability for failing to secure the lid on the hot drink. Defendant, however, failed to adequately